

**PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 4, 2026, AT 8:30 A.M.**

These are the tentative rulings for the **THURSDAY, JUNE 4, 2026, at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., WEDNESDAY, JUNE 3, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR CIVIL LAW AND MOTION MATTERS. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **THE HONORABLE MICHAEL W. JONES**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 3** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. M-CV-0086184 SYNCHRONY BANK v. TORRES, VANESSA

Plaintiff's Motion to Vacate Default Judgment

On April 16, 2026, the court continued plaintiff's motion to June 4, 2026, because the notice of motion, memorandum of points and authorities, and declaration all omit any reason for the court to vacate the default and default judgment entered against defendant. The court required plaintiff to file an amended motion and supporting papers on or before May 4, 2026, that includes the previously omitted reason for the court to vacate the default and default judgment pursuant to Code of Civil Procedure section 664.6. A review of the court record reveals plaintiff did not file an amended motion or supplemental declaration clarifying any legal basis for the relief sought. Accordingly, plaintiff's motion is denied without prejudice.

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2. M-CV-0091212 WELLS FARGO BANK v. FINIGAN, CARLY

The motion for judgment on the pleadings is dropped from calendar in light of defendant's bankruptcy proceedings.

3. M-CV-0094880 CAMPBELL WASHBURN v. FLYING J RANCH

Specially Appearing Defendants Motion to Quash Improper Service of Summons

Preliminary Matters

Defendants' requests for judicial notice are granted.

Ruling on Motion

Defendants move to quash the service of summons on them pursuant to Code of Civil Procedure section 418.10. Notably, defendants contend service was improper because it was accomplished pursuant to Code of Civil Procedure section 415.40 despite defendants being in California.

Where, as here, defendants challenge the "courts personal jurisdiction on the ground of improper service of process[.]" plaintiff bears the burden "to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service." (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413.)

Plaintiff does not oppose the motion and thus does not meet its burden to prove the existence of jurisdiction. Even assuming arguendo plaintiff did oppose the motion, the service effectuated here is nonetheless improper because defendants are California residents and have a presence in California.

Accordingly, defendants' motion is granted. The service of summons made on defendants Flying J Ranch, LLC, Shannon B. Jones Law Group, Inc., 300 Diablo, LLC, 300 Diablo II, LLC are hereby quashed.

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4. S-CV-0050570 CATURAY, ROCHELLE v. MILLER, KURT

Petition for Approval of Minor's Compromise Claim (Alessandra Caturay)

The petition for approval of minor's compromise claim is denied without prejudice. There are several deficiencies with the petition. First, the petition does not allege what injuries claimant Alessandra Caturay suffered. Second, the petition alleges there is no contractual or statutory lien for medical expenses but nonetheless requests that \$1,500 of the settlement proceeds be paid toward medical expenses. Third, the petition does not attach any medical records. Fourth, the petition requests that \$4,500—the entire settlement amount after subtracting medical expenses—be paid to the guardian of the estate but then also requests that \$911 be deposited into an insured account in a financial institution in the state. This creates two distinct issues: one, petitioner requests funds to be allocated greater than the amount recovered and two, the petition does not specify which financial institution the funds are to be placed.

5. S-CV-0051324 AMERICAN EXPRESS NAT'L v. HABIBI, FATEMA

Plaintiff's Motion to Vacate the Conditional Dismissal and for Entry of Judgment Pursuant to Code of Civil Procedure Section 664.6

Plaintiff's unopposed motion is granted. (Code Civ. Proc., § 664.6.) The dismissal entered by the court on November 2, 2023, is vacated. Judgment shall be entered in favor of plaintiff and against defendant in the amount of \$53,732.26, less credits in the amount of \$38,733.36, plus court costs in the amount of \$475, for a total judgment entered of \$15,473.90.

6. S-CV-0052034 ORTIZ, MICHAEL v. CITY OF LINCOLN

Plaintiff's Motion to Tax Costs Submitted by Jewett Defendants

Plaintiff moves to tax defendants John Jewett and Jessica Jewett's memorandum of costs filed with the court on February 13, 2026, after the court granted defendants' motion for summary judgment.

The court must first determine whether defendants are prevailing parties pursuant to Code of Civil Procedure section 1032, subdivision (a)(4), which defines prevailing party as

the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains

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any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the “prevailing party” shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.

(Code Civ. Proc., § 1034, subd. (a)(4).)

Here, defendants are the prevailing parties because plaintiff did not recover any relief against defendants. Thus, defendants are entitled to recover their costs. (Code Civ. Proc., § 1034, subd. (b).) Plaintiff seeks to tax the entirety of the costs memorandum.

“If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. . . . Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion.” (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.) Moreover, “if the items appear to be proper charges the verified memorandum is prima facie evidence that the costs, expenses, and services therein listed were necessarily incurred by the defendant.” (*Benach v. County of Los Angeles* (2007) 149 Cal.App.4th 836, 856.)

Here, the challenged items of filing and motion fees, jury fees, deposition costs, and fees for electronic filing or service are proper charges as each cost is statutorily authorized. (Code Civ. Proc., §§ 1033.5, subds. (a)(1), (3)(A), (14).) Plaintiff therefore bears the burden to show the costs were unreasonable or unnecessary. (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131.) Plaintiff, however, does not meet his burden. Even assuming arguendo plaintiff did meet his burden—which he did not—defendants thereafter meets their burden to show, through the declaration of Robert Sweetin and the exhibits attached thereto, the requested costs were incurred, reasonably necessary to the litigation, and reasonable in amount. (Code Civ. Proc., § 1033.5, subd. (c).)

Accordingly, plaintiff’s motion is denied in its entirety.

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Plaintiff's Motion to Tax Costs Submitted by Defendant City of Lincoln

Plaintiff moves to tax defendant City of Lincoln's memorandum of costs filed with the court on March 26, 2026, after the court granted defendant's motion for summary judgment.

The court must first determine whether defendant is a prevailing party pursuant to Code of Civil Procedure section 1032, subdivision (a)(4), which defines prevailing party as

the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the "prevailing party" shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.

(Code Civ. Proc., § 1034, subd. (a)(4).)

Here, defendant is the prevailing party because plaintiff did not recover any relief against defendant. Thus, defendant is entitled to recover their costs. (Code Civ. Proc., § 1034, subd. (b).) Plaintiff seeks to tax the entirety of the costs memorandum.

"If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. . . . Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion." (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.) Moreover, "if the items appear to be proper charges the verified memorandum is prima facie evidence that the costs, expenses, and services therein listed were necessarily incurred by the defendant." (*Benach v. County of Los Angeles* (2007) 149 Cal.App.4th 836, 856.)

Here, the challenged items of jury fees and deposition costs are proper charges as each cost is statutorily authorized. (Code Civ. Proc., §§ 1033.5, subds. (a)(1), (3)(A), (14).) Plaintiff therefore bears the burden to show the costs were unreasonable or unnecessary. (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131.) Plaintiff, however, does not meet his burden. Even assuming *arguendo* plaintiff did meet his

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burden—which he did not—defendant thereafter meets its burden to show, through the declaration of Joe Little and the exhibits attached thereto, the requested costs were incurred, reasonably necessary to the litigation, and reasonable in amount. (Code Civ. Proc., § 1033.5, subd. (c).)

Accordingly, plaintiff’s motion is denied in its entirety.

7. S-CV-0052150 ZOLLER, KATHIE v. DONALD RYAN AND CAROLYN

Defendants’ Motion for Summary Adjudication on the Second Cause of Action for Intentional Infliction of Emotional Distress and on the Claim for Punitive Damages

Appearances of the parties are required at the hearing.

8. S-CV-0053126 HUSSAIN, SYED v. RAMIREZ, ISIDRO

Plaintiff’s Motion for Leave to Amend Complaint to Allow Claim for Punitive Damages

Plaintiff moves for leave from the court to amend his complaint to include a prayer for punitive damages.

The court notes the motion is procedurally deficient because it does not comply with California Rules of Court, Rule 3.1324, subdivision (a) by identifying what allegations are to be deleted and what allegations are to be added. This is especially problematic here because plaintiff moves to add a prayer for punitive damages yet the proposed second amended complaint is 3 pages longer than the operative first amended complaint. The court nonetheless addresses the merits of plaintiff’s motion.

Punitive damages are available “where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice.” (Civ. Code § 3294, subd. (a).) Malice is “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (*Id.* at § 3294, subd. (c)(1).) Oppression is “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (*Id.* at § 3294, subd. (c)(2).)

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Corporate employers can be held liable for punitive damages based on the acts of the employee when “the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (*Id.* at § 3294, subd. (b).)

Courts may deny leave to amend “where permitting an amendment would be futile. . . .” (*Singh v. Lipworth* (2014) 227 Cal.App.4th 813, 828.)

Here, plaintiff’s motion is denied because the amendments would be futile in light of the insufficient pleadings that defendants acted with oppression, fraud, or malice, or that defendant Pacific Power Renewables, Inc. employed defendant Isidro Juan Ramirez “with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice.” The court observes there are several conclusions that defendant Isidro Juan Ramirez’s license was suspended but no allegations surrounding why his license was suspended. This is problematic because there are a wide range of possible reasons for an individual’s license to be suspended, some of which involve monetary reasons and others are driving related. As pleaded, there is no causal link between defendant Isidro Juan Ramirez’s suspended license and any alleged actions of oppression, fraud, or malice.

Accordingly, plaintiff’s motion is denied.

Defendants Isidro Juan Ramirez, David Warren Dwelle, and Pacific Power Renewables, Inc.’s Motion to Compel Neuropsychological Independent Examination of Plaintiff Syed Mustafa Hussain

Defendants move for a court order permitting a neuropsychological independent medical examination of plaintiff pursuant to Code of Civil Procedure sections 2032.310 and 2032.320. The court finds good cause exists for the examination. However, the court also determines there is no good cause for the exam to be conducted more than 75 miles from plaintiff’s residence in Yorba Linda.

The court sets an order to show cause re: examination for June 25, 2026, at 8:30 a.m. in Department 3. The parties shall meet and confer in good faith, which includes acting within the spirit and meaning of the California Attorney Guidelines of Civility

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and Professionalism, to select a mutually agreed upon doctor to conduct the exam, exam location, which specific tests are to be conducted (*Carpenter v. Superior Court* (2006) 141 Cal.App.4th 249, 269), the exam procedures, whether or not plaintiff will be entitled to the audio-taped testing portion of the exam, and whether the parties will stipulate to a protective order for the audio-taped testing portion of the exam.

On or before June 18, 2026, the parties shall file a joint declaration detailing their meet and confer efforts and whether they have mutually agreed upon the above matters. If the parties timely file a joint declaration that indicates the above matters have been resolved, then the June 25, 2026, hearing shall be dropped. If the parties cannot agree on the above matters, then each party shall submit 2 doctors and a list of their proposed specific tests for the court to decide at the June 25, 2026, hearing. Personal appearances shall be required at the June 25, 2026, hearing.

9. S-CV-0053774 LAFAYETTE FEDERAL CREDIT v. JOYNER, JOHN

Plaintiff's Motion to Enter Judgment Pursuant to CCP § 664.6

Plaintiff's unopposed motion is granted. (Code Civ. Proc., § 664.6.) The dismissal entered by the court on March 28, 2025, is vacated. Judgment shall be entered in favor of plaintiff and against defendant in the amount of \$40,419.71, plus court costs in the amount of \$508.55, for a total judgment entered of \$41,953.26.

10. S-CV-0053914 GERVIN, DONALD v. GROSS, RICKY
S-CV-0055243 GROSS, RICKEY V. GERVIN, DONALD

Defendant Rickey Glenn Gross's Motion to Consolidate Actions

Defendant's motion to consolidate actions is dropped from calendar in light of the parties' stipulated stay granted by the court on January 14, 2025.

Plaintiff Rickey Glenn Gross's Motion to Consolidate Actions

Plaintiff's motion is denied without prejudice. The court declines to consolidate a stayed case with a non-stayed case. (Code Civ. Proc., § 1048.)

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11. S-CV-0056024 IN RE THE PETITION OF GARDNER, JESSICA

Petition for Approval of Minor's Compromise Claim (Ryder Gardner)

The petition for approval of minor's compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)

12. S-CV-0056214 CARSON, CHRISTOPHER v. BUDAC, ABIGAILA

The demurer is continued to **July 2, 2026, at 8:30 a.m. in Department 3.**

13. S-CV-0056706 ZAVALA, MARIO v. GENERAL MOTORS

The demurrer is dropped from calendar in light of defendant filing an amended answer with the court on May 21, 2026.

14. S-CV-0056779 DALO, SAMAN v. STATE COMMISSIONER

Petition for Mandamus

Between May 24 and August 16, 2021, petitioner called 911 hundreds of times; threatened the dispatchers who answered his telephone calls; demanded to know a dispatcher's name and personal address; and threatened to shoot or kill police officers who came to his house.

Petitioner was thereafter charged with a violation of Penal Code section 646.9(a) (felony stalking), two violations of Penal Code section 69 (felony counts of resisting an executive officer), and a violation of Penal Code section 653x(a) (misdemeanor count of making unlawful 911 calls). Petitioner pled no contest to the violation of Penal Code section 646.9(a) and the remaining charges were dismissed. Petitioner was sentenced to 45 days in county jail, two years of probation, and ordered to pay court fines. Petitioner's probation was terminated early, his felony stalking conviction was reduced to a misdemeanor, and the conviction was eventually dismissed pursuant to Penal Code section 1203.4. Petitioner did not report his conviction to the Department of Real Estate.

The Department of Real Estate revoked petitioner's real estate license based on the above conduct.

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Petitioner sought review before the Department of Real Estate, Department of Consumer Affairs. The court there denied petitioner's claim and found the Department of Real Estate properly revoked his license pursuant to Business and Professions Code sections 490, subdivision (a) and 10177, subdivisions (b)(1) and (d).

Petitioner Saman Dalo now petitions this court for mandamus relief challenging the Department of Real Estate's decision to revoke his real estate license.

Trial courts reviewing a petition for mandamus in this scenario apply the independent judgment standard of review. (*Vaill v. Edmonds* (1991) 4 Cal.App.4th 247, 257.) This requires the court to "weigh the evidence and make its own determination as to whether the administrative findings should be sustained." (*Id.* at 258.) However, the determination of the penalty imposed is afforded great deference to the administrative agency's findings and only disturbed if there has been an abuse of discretion. (*Deegan v. City of Mountain View* (1999) 72 Cal.App.4th 37, 45–47.)

Business and Professions Code section 10177, subdivision (b)(1) provides the Commissioner of the Department of Real Estate may revoke a real estate license where the licensee "Entered a plea of . . . no contest to . . . a felony, or a crime substantially related to the qualifications, functions, or duties of a real estate licensee . . . irrespective of an order granting probation following that conviction, suspending the imposition of sentence, or of a subsequent order under Section 1203.4 of the Penal Code allowing that licensee to withdraw that licensee's plea of guilty and to enter a plea of not guilty, or dismissing the accusation or information." (Bus. & Prof. Code, § 10177, subd. (b)(1).)

Business and Professions Code section 10177, subdivision (d) also provides the Commissioner of the Department of Real Estate to revoke a real estate license where the licensee "Willfully disregarded or violated this part or Chapter 1 (commencing with Section 11000) of Part 2 or the rules and regulations of the commissioner for the administration and enforcement of this part and Chapter 1 (commencing with Section 11000) of Part 2." (Bus. & Prof. Code, § 10177, subd. (d).) One such requirement is for the licensee to report "(A) The bringing of a criminal complaint, information, or indictment charging a felony against the licensee [and] (B) The conviction of the licensee, including any verdict of guilty, or plea of guilty or no contest, of any felony or misdemeanor." (Bus. & Prof. Code, § 10186.2, subd. (a)(1)(A)–(B).)

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Business and Professions Code section 490 additionally allows the Department of Real Estate to revoke a licensee's real estate license "on the ground that the licensee has been convicted of a crime, if the crime is substantially related to the qualifications, functions, or duties of the business or profession for which the license was issued." (Bus. & Prof. Code, § 490, subd. (a).)

For purposes of Business and Profession Code sections 490 and 10177, a crime is substantially related to the qualifications, functions, or duties of a licensee if the crime is an "unlawful act . . . with the intent or threat of doing substantial injury to the person or property of another." (Cal. Code Regs., tit. 10, § 2910, subd. (a)(8).)

Here, a careful review of the record reveals there is sufficient evidence for the court to determine that petitioner's no contest plea, and subsequent conviction, to a violation of Penal Code section 646.9(a) is a crime that substantially related to the qualifications, functions, or duties of a real estate licensee because threatening the lives of police officers and dispatchers constitutes a threat of substantial injury to a person. (Bus. & Prof. Code, §§ 490, subd. (a), 10177, subd. (b)(1); Cal. Code Regs., tit. 10, § 2910, subd. (a)(8).) Moreover, there is no evidence in the record that petitioner informed the Department of Real Estate about either the criminal complaint or information or the subsequent conviction based on the no contest plea. (Bus. & Prof. Code, § 10186.2, subd. (a)(1)(A)–(B).) The administrative court's findings are sustained.

When determining whether to revoke a real estate license after a licensee has completed a criminal sentence at issue without a violation of parole or probation or the board, after applying the criteria for rehabilitation finds the applicant has been rehabilitated, the board shall evaluate the follow rehabilitation criteria to determine whether the licensee has made a showing of rehabilitation. (Bus. & Prof. Code, § 482.) The criteria includes:

- (a) The time that has elapsed since commission of the act(s) or offense(s):
 - (1) The passage of less than two years after the most recent criminal conviction or act of the licensee that is a cause of action in the Bureau's Accusation against the licensee is inadequate to demonstrate rehabilitation.
 - (2) Notwithstanding subdivision (a)(1), above, the two year period may be increased based upon consideration of the following:
 - (A) The nature and severity of the crime(s) and/or act(s) committed by the licensee.

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- (B) The licensee's history of criminal convictions and/or license discipline that are “substantially related” to the qualifications, functions, or duties of a real estate licensee.
- (b) Restitution to any person who has suffered monetary losses through “substantially related” acts or omissions of the licensee, or escheat to the State of these monies or other properties if the victim(s) cannot be located.
- (c) Expungement of the conviction(s) which culminated in the administrative proceeding to take disciplinary action.
- (d) Expungement or discontinuance of a requirement of registration pursuant to the provisions of Section 290 of the Penal Code.
- (e) Successful completion or early discharge from probation or parole.
- (f) Abstinence from the use of controlled substances and/or alcohol for not less than two years if the criminal conviction was attributable in part to the use of a controlled substance and/or alcohol.
- (g) Payment of any fine imposed in connection with the criminal conviction that is the basis for revocation or suspension of the license.
- (h) Correction of business practices responsible in some degree for the crime or crimes of which the licensee was convicted.
- (i) New and different social and business relationships from those which existed at the time of the commission of the acts that led to the criminal conviction or convictions in question.
- (j) Stability of family life and fulfillment of parental and familial responsibilities subsequent to the criminal conviction.
- (k) Completion of, or sustained enrollment in, formal educational or vocational training courses for economic self-improvement.
- (l) Significant and conscientious involvement in community, church or privately-sponsored programs designed to provide social benefits or to ameliorate social problems.
- (m) Change in attitude from that which existed at the time of the commission of the criminal acts in question as evidenced by any or all of the following:
- (1) Testimony and/or other evidence of rehabilitation submitted by the licensee.
 - (2) Evidence from family members, friends and/or other persons familiar with the licensee's previous conduct and with subsequent attitudes and/or behavioral patterns.
 - (3) Evidence from probation or parole officers and/or law enforcement officials competent to testify as to licensee's social adjustments.
 - (4) Evidence from psychiatrists, clinical psychologists, sociologists or other persons competent to testify with regard to neuropsychiatric or emotional disturbances.

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(5) Absence of subsequent felony convictions, misdemeanor convictions, or other conduct that provides grounds to discipline a real estate licensee, which reflect an inability to conform to societal rules when considered in light of the conduct in question.

Here, petitioner has established slight rehabilitation through the passage of time and engagement in AA. However, his refusal to express remorse for his conduct expresses he has not fully rehabilitated. (*Seide v. Committee of Bar Examiners* (1989) 49 Cal.3d 933, 940.)

Accordingly, petitioner's writ of mandamus is denied.

15. S-PR-0005952 JULIUS, IRENE - IN RE THE TRUST OF

Amended Motion for an Order for the Assignment of Rights to Payment and Related Relief

On October 7, 2014, the court found in favor of Jamey Julius and entered judgment against Ami Baldin for abusing her position as trustee. Ami Baldin is married to Adam Baldwin.

In 2024, Jamey Julius renewed the judgment for \$337,797.68 and assigned his rights to the judgment to Crystal Bergstrom.

Crystal Bergstrom, the assigned judgment creditor, moves for an order for the assignment of rights to payment and related relief pursuant to Code of Civil Procedure section 708.510.

Courts—upon an application of the judgment creditor on noticed motion—“may order the judgment debtor to assign to the judgment creditor or to a receiver appointed . . . all or part of a right to payment due or to become due, whether or not the right is conditioned on future developments. . . .” (Code Civ. Proc., § 708.510, subd. (a).) The statute provides a non-exhaustive list of payments that may be assigned, including: “(1) Wages due from the federal government that are not subject to withholding under an earnings withholding order. (2) Rents. (3) Commissions. (4) Royalties. (5) Payments due from a patent or copyright. (6) Insurance policy loan value.” (*Id.* at subd. (a)(1)–(6).) Any right to payment assigned must only be to the extent necessary to satisfy the money judgment. (*Id.* at subd. (d).)

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Moreover, the motion must be served on the judgment debtor either personally or by mail. (Code Civ. Proc., § 708.510, subd. (b).)

To determine “whether to order an assignment or the amount of an assignment pursuant to subdivision (a), the court may take into consideration all relevant factors, including the following:

- (1) The reasonable requirements of a judgment debtor who is a natural person and of persons supported in whole or in part by the judgment debtor.
- (2) Payments the judgment debtor is required to make or that are deducted in satisfaction of other judgments and wage assignments, including earnings assignment orders for support.
- (3) The amount remaining due on the money judgment.
- (4) The amount being or to be received in satisfaction of the right to payment that may be assigned.”

(Code Civ. Proc., § 708.510, subd. (c).)

Here, the court finds the noticed motion was properly served by mail on Ami Baldwin and Adam Baldwin. Moreover, the factors enumerated in Code of Civil Procedure section 708.510, subdivision (c) weigh in favor of assigning rights to payments due or to become due.

The court incorporates the findings in the proposed order lodged with the court on May 15, 2026.

Moreover, Ami Baldwin and Adam Baldwin are restrained from assigning or otherwise disposing of the right to payments that are assigned. (Code Civ. Proc., § 708.520.)

Finally, Ami Baldwin and Adam Baldwin shall file a declaration with the court at 90-day intervals detailing all payments subject to the Assignment Order that are due, will become due or have been paid to them from any Obligor to the Baldwin’s or on their behalf to third parties during the relevant time period. Said accounting to include the date, amount and persons’ names and addresses of all persons paying the monies to the Baldwins, (or on their behalf) and, if monies are paid on the Baldwins behalf to third parties, the names and addresses of said third parties.

The order after hearing shall be personally served on Ami Baldwin and Adam Baldwin.